

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RICHARD O. CHAPMAN,

Plaintiff,

Index No.505069/2013

-against-

Amended Complaint

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
DONOHUE (shield # 9014), individually and in his
Official capacity as a New York City Police Officer,

Defendants.
-----X

Plaintiff by his attorneys Antin, Ehrlich & Epstein, LLP, complaining of the
defendants, respectfully alleges upon information and belief as follows:

1. That at all times hereinafter mentioned, plaintiff was a resident of the County
of Kings, City and State of New York.
2. That at all times hereinafter mentioned, Police Officer Donohue (shield #
9014), hereinafter referred to as "Donohue", was a Police Officer an agent, servant and/or
employee of the defendant, The City of New York and/or The New York City Police
Department.
3. That at all times hereinafter mentioned, the defendant, The City of New York
(hereinafter referred to as "City"), was and still is a Municipal Corporation, duly organized and
existing under the laws of the State of New York.
4. That at all times hereinafter mentioned, the defendant, "City", did employ
Police Officer Donohue.

5. That at all times herein mentioned, plaintiff duly served a Notice of Claim and Intention to Sue thereupon on the defendant, "City", on August 28, 2012 within the time prescribed by law.

6. That defendant, "City", has neglected and refused to make an adjustment in payment thereof within more than thirty (30) days after service of said Notice of Claim and Intention to Sue.

7. That pursuant to a stipulation signed by the City of New York and plaintiff's attorneys, defendant agreed to permit plaintiff to commence this law suit prior to the statutory 50-H hearing being held.(copy of the stipulation is annexed hereto and made a part hereof)

AS AND FOR A FIRST CAUSE OF ACTION

8. That on May 30, 2012 at approximately 8:00 p.m., the plaintiff was lawfully within his ground-floor, street access apartment on the Ditmas side of 505 East 22nd Street in the County of Kings, City and State of New York when the defendant "Donohue" and/or other police officers banged on the door to his apartment.

9. That at the aforesaid time and place, plaintiff voluntarily cooperated with the instructions of the police officers at the aforesaid location.

10. That on or about the 30th day of May, 2012, defendant "Donohue" and/or other unknown police officers asked plaintiff to step outside his apartment, and was handcuffed, arrested and driven around for hours in a squad car, shirtless, then taken to the 70th precinct and then hours later taken to central booking where he was released and shown a paper marked "declined prosecution".

11. That plaintiff was unlawfully imprisoned and/or detained for more than 30 hours.

12. That “Donohue” and other officers unknown, by virtue of the foregoing conduct and while acting within the scope of their employment as police officers of defendant, “City”, failed to exercise their duties owed to plaintiff in a proper and non-negligent manner and with the level of care that a reasonable and prudent person would have exercised in other circumstances.

13. That as a result of the foregoing negligent acts and omissions of the defendants, including defendant “Donohue” and other officers unknown, plaintiff, has been damaged in a sum that exceeds the jurisdictional amount of all lower Courts which would otherwise have jurisdiction.

14. That this action falls within one or more of the exceptions set forth in CPLR 1602.

15. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained in paragraphs “1” through “15” hereof, as if the same were fully re-alleged herein at length.

17. That on June 1, 2012 between 7:00pm and 8:00 p.m., plaintiff was lawfully and properly on a public sidewalk on Ditmas Avenue adjacent to the premise located at 505 East 22nd Street, in the County of Kings, City and State of New York.

18. That at the aforesaid time and place, plaintiff was voluntarily cooperating with the instructions of the police officers at the aforesaid location.

19. That on or about the 1st day of June, 2012, defendant ‘Donohue’ and/or other unknown police officers handcuffed and arrested plaintiff and confined him for over 30 hours before being released with a paper to return for a court appearance.

20. That the arrest of the plaintiff on June 1, 2012 by defendant “Donohue” and/or other police officers was retaliatory for the fact that no charges were filed for the May 30, 2012 arrest/detainment of the plaintiff.

21. That “Donohue” and other officers unknown, by virtue of the foregoing conduct and while acting within the scope of their employment as police officers of defendant, “City”, failed to exercise their duties owed to plaintiff in a proper and non-negligent manner and with the level of care that a reasonable and prudent person would have exercised in other circumstances.

22. That as a result of the foregoing negligent acts and omissions of the defendants, including defendant “Donohue” and other officers unknown, plaintiff, has been damaged in a sum that exceeds the jurisdictional amount of all lower Courts which would otherwise have jurisdiction.

23. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

24. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained I paragraphs “1” through “23” hereof, as if the same were fully re-alleged herein at

length.

25. That on May 30, 2012 defendant "Donohue" and other officers unknown, falsely arrested and/or detained plaintiff while acting within the scope of their employment as police officers of defendant, "City", failed to exercise their duties owed to plaintiff in a proper and non-negligent manner and with the level of care that a reasonable and prudent person would have exercised in other circumstances.

26. That as a result of the foregoing negligent acts and omissions of the defendants, including defendant "Donohue" and other officers unknown, plaintiff, has been damaged in a sum that exceeds the jurisdictional amount of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

27. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained I paragraphs "1" through "26" hereof, as if the same were fully re-alleged herein at length.

28. That on June 1, 2012 defendant "Donohue" and other officers unknown, falsely arrested and/or detained plaintiff while acting within the scope of their employment as police officers of defendant, "City", failed to exercise their duties owed to plaintiff in a proper and non-negligent manner and with the level of care that a reasonable and prudent person would have exercised in other circumstances.

29. That as a result of the foregoing negligent acts and omissions of the defendants, including defendant "Donohue" and other officers unknown, plaintiff, has been damaged in a sum that exceeds the jurisdictional amount of all lower Courts which would

otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" through "29" hereof, as if the same were fully re-alleged herein at length.

31. That defendant "Donohue" and other unknown officers, while acting within the scope of their employment as police officers, employees of the defendant, "City", wantonly, willfully, with malice and intention, without justification, and knowing and intending that their actions would injure plaintiff, physically, mentally and emotionally, engaged in the aforesaid wrongful conduct.

32. By virtue of the foregoing, plaintiff is entitled to recover punitive and exemplary damages from and against the defendants.

AS AND FOR A SIXTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" through "32" hereof, as if the same were fully re-alleged herein at length.

34. That employees, servants, and/or agents of defendant "City" acting within the scope of their employment and defendant "City", including but not limited to defendant "Donohue" did maliciously prosecute plaintiff.

35. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

36. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" through "35" hereof, as if the same were fully re-alleged herein at length.

37. That defendant "Donohue" and other employees, agents and/or servants of defendant "City" and "City" did violate the Civil Rights of plaintiff.

38. That as a result of the foregoing, plaintiff, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A EIGHTH CAUSE OF ACTION

39. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" through "38" hereof, as if the same were fully re-alleged herein at length.

40. That defendant "Donohue" and other employees, agents, and/or servants of "City" and defendant "City" did commit a prima facie tort upon plaintiff.

41. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION

42. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" through "41" hereof, as if the same were fully re-alleged herein at length.

43. That on May 30, 2012 at approximately 8:00 p.m., while the plaintiff was lawfully and properly within his apartment at the aforesaid location, defendant

“Donohue” and/or other police officers intentionally and maliciously assaulted plaintiff, in the course of seizing and arresting plaintiff.

44. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION

45. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained in paragraphs “1” through “44” hereof, as if the same were fully re-alleged herein at length.

46. That on June 1, 2012 at approximately 7:00 p.m., while the plaintiff was lawfully and properly at the aforesaid location, defendant “Donohue” and/or other police officers intentionally and maliciously assaulted plaintiff, in the course of seizing and arresting plaintiff.

47. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A ELEVENTH CAUSE OF ACTION

48. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained in paragraphs “1” through “47” hereof, as if the same were fully re-alleged herein at length.

49. By virtue of the foregoing, defendants, their officers, agents, servants and/or employees, are liable to plaintiff for the assault, false arrest, false imprisonment,

retaliatory arrest and malicious prosecution of the plaintiff, and all resultant damages, because of their careless, negligent, reckless and/or deliberate failure, or deliberate indifference to the need to properly hire, train, discipline, retain and/or supervise their agents, servants, employees and/or other officers with regard to the duties of said agents, servants, officers and/or employees.

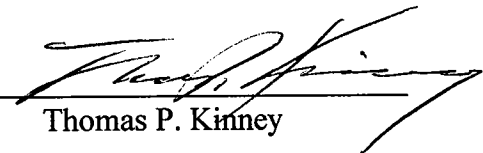
50. That as a result of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction and is also entitled to punitive damages.

WHEREFORE, plaintiff, Richard O. Chapman demands judgment against defendants on all Causes of Action in the sum above mentioned for compensatory damages, for punitive damages and for statutory attorney's fees and disbursements pursuant to 42 U.S.C §1988.

Dated: New York, New York
August 28, 2013

Yours, etc.

Antin, Ehrlich & Epstein, LLP
Attorneys for Plaintiff
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New York, New York 10018
212-221-5999

By: 
Thomas P. Kinney

2013 14:49 FAX 2122218867

ANTIN EHRLICH & EPSTEIN

002/002

IN THE MATTER OF THE CLAIM OF

Richard CHAPMAN

STIPULATION

Claim # 2012 PIO 22497

against

THE CITY OF NEW YORK

IT IS HEREBY STIPULATED AND AGREED by the attorney for the above named claimant(s) and the Comptroller of the City of New York that:

1) The examination pursuant to General Municipal Law Section 50-h (hereinafter "50-h") of the above named claimant(s) currently scheduled for 6-21-13 is hereby adjourned at the claimant's request. In particular, the claimant alleges that he/she is unable to attend the hearing due to

CRIMINAL CHARGE PENDING

2) Claimant shall be responsible for notifying the City of New York (hereinafter "City"), by certified or registered mail, return receipt requested within thirty (30) days after the claimant has become available to appear and give testimony at said hearing. The notification shall be sent to the Office of the Comptroller of the City, Bureau of Law and Adjustment, 1 Centre Street - 12th Floor, New York, NY 10007. A copy of this stipulation must be attached to the notification. Upon receipt of the notification, the City shall have ninety (90) days in which to schedule the hearing.

3) Claimant may commence an action against the City on the above claim within the applicable statute of limitations prior to the City conducting a hearing or physical examination of claimant pursuant to 50-h.

4) If claimant commences an action against the City, and/or any of its agents, servants or employees claimant(s)/plaintiff(s) shall make no discovery demands, issue shall not be joined, and the defendant(s) time to serve an answer shall extend until 30 days after proper notification has been made as set forth below that the examination(s) pursuant to 50-h is/are completed.

5) Proper notification that the examination(s) pursuant to 50-h is/are completed must be made by either certified or registered mail return receipt requested or hand delivery addressed to the Office of the Corporation Counsel, 100 Church Street, New York, NY 10007, Attention Deputy Chief of the Early Intervention Unit. The notification must include a copy of this signed stipulation and a notarized copy of the hearing transcript with corrections, if any, and a cover letter requesting that an answer be served.

6) Nothing herein shall be construed as a waiver of the City's rights pursuant to 50-h.

Dated: New York, NY

August 8, 2013

BY: 

For the City


Attorney for Claimant/PlaintiffAntin Ehrlich & Epstein, LLP
Attorney Firm

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

RICHARD O. CHAPMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER DONOHUE (shield # 9014), individually and in his Official capacity as a New York City Police Officer,

Defendants.

AMENDED COMPLAINT

LAW OFFICES OF

ANTIN, EHRLICH & EPSTEIN, LLP

Attorneys for Plaintiff

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Pursuant to 22 NYCRR 130-1.1a, the undersigned, an attorney admitted to practice in the courts of New York state certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (I) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Service of a copy of the within
Dated: _____

Is hereby admitted

Attorney(s) for

Dated: _____ Signature: _____

Print Signer's Name: _____
